

25PR00441 Estate of Tyler Tibben

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-14

Motion: Report of Sale and Petition for Order Confirming Sale of Real Property

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Tentative Ruling: Estate of Tyler Tibben

Case Number

25PR00441

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/14/2026 - 09:00

Nature of Proceedings

Report of Sale and Petition for Order Confirming Sale of Real Property

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Petitioner, Tasha Bulowski, is the Personal Representative of the Decedent's estate. Petitioner served a Notice of Proposed Action on May 28, 2026, indicating the intent to sell the one parcel of real property owned by the estate. On June 5, 2026, counsel for Decedent's child filed an objection to the Notice of Proposed Action. In response to the Objection, Petitioner filed this Petition for Confirmation of Sale on June 23, 2026, to which minor's counsel filed written objection on June 26, 2026. This places the matter at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667,

676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

In addition to the objection filed by minor's counsel, the Petition is procedurally defective as follows:

Proof of Posting Notice of Hearing. There is no notice of this hearing posted on site at the court. Probate Code section 10308(c) requires Notice of the hearing on the petition for confirmation filed under subdivision (a) or (b) shall be given as provided in Section 1220 to the persons designated by that section and to the purchasers named in the petition, and posted as provided in Section 1230.

Supplement re: Overbid. Paragraphs 10 and 11 of the petition must be alleged/completed, but were left blank/unalleged. Please submit supplement or amend the petition to complete the overbid process.

Proposed Orders (DE-260 and MC-355). A proposed order (DE-260) must be submitted with relief that matches that requested in the petition, and Proposed Order to Deposit Funds Into Blocked Account (MC-355). No such document was filed with the court.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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